



CHAPTER cii.

An Act to empower the mayor aldermen and burgesses of the borough of Torquay to construct street improvements to confer further powers upon the Corporation with regard to the health local government and improvement of the borough and with regard to their water electricity and gas undertakings to amalgamate the parishes and consolidate the rates of the borough and for other purposes.

A.D. 1923.

[2nd August 1923.]

WHEREAS the borough of Torquay (in this Act called "the borough") is under the local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas it is expedient to empower the Corporation to construct the street improvements in this Act referred to:

And whereas it is expedient that further powers should be made in regard to the health local government and improvement of the borough as by this Act provided:

And whereas it is expedient that further powers should be conferred upon the Corporation with respect to their water electricity and gas undertakings:

And whereas it is expedient to provide for the consolidation of the parishes of Tormoham and St. Marychurch within the borough into one parish to be called the parish of Torquay and to constitute the council

[Ch. cii.] *Torquay Corporation* [13 & 14 GEO. 5.]
Act, 1923.

A D. 1923. of the borough the overseers of such parish and to make provision for the consolidation of the rates levied in the area of the borough :

And whereas it is expedient to provide that the loans to the Corporation may be treated as a consolidated loans fund available for the exercise of any duly authorised borrowing powers of the Corporation and that the security given to lenders shall in all cases be the same :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

For and in connection with the purchase	£
of lands for the street improvements by	
this Act authorised - - - - -	3,000
For the construction of such street im-	
provements - - - - -	10,000
For and in connection with the purchase	
of land for the purposes of their water	
undertaking and Abbey Park recreation	
grounds - - - - -	2,000
For the construction of the works upon	
the seashore by this Act authorised - - -	32,500

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the street improvements authorised by this Act and plans of the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Devon which

plans sections and book of reference are in this Act A.D. 1923.
respectively referred to as the deposited plans sections
and book of reference : —

May it therefore please Your Majesty that it may
be enacted and be it enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Torquay Corpora-* Short title.
tion Act 1923.

2. This Act is divided into Parts as follows :— Division of
Act into
parts.

- Part I.—Preliminary.
- Part II.—Street improvements.
- Part III.—Lands.
- Part IV.—Streets buildings sewers drains &c.
- Part V.—Infectious disease and sanitary pro-
visions.
- Part VI.—Slaughter-houses.
- Part VII.—Food.
- Part VIII.—Hackney carriages.
- Part IX.—Water.
- Part X.—Electricity.
- Part XI.—Gas.
- Part XII.—Parks and recreation grounds.
- Part XIII.—Consolidation of parishes.
- Part XIV.—Rating.
- Part XV.—Finance.
- Part XVI.—Miscellaneous.

3. The Lands Clauses Acts (so far as they are appli- Incorpora-
cable to the purposes of and are not inconsistent with tion of
the provisions of this Act) are hereby incorporated with general
and form part of this Act except section 127 of the Acts.
Lands Clauses Consolidation Act 1845 (relating to the
sale of superfluous lands) :

Provided that the bond required by section 85 of
the Lands Clauses Consolidation Act 1845 shall be under
the corporate seal of the Corporation and shall be

A.D. 1923. — sufficient without the addition of the sureties mentioned in that section.

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Torquay;

“The borough” means the borough of Torquay;

“The council” means the council of the borough;

“The town clerk” “the treasurer” “the surveyor” “the medical officer” and “the sanitary inspector” mean respectively the town clerk the treasurer the surveyor the medical officer of health of the borough and any sanitary inspector appointed by the Corporation in pursuance of the powers of any public Act and respectively include any person duly appointed by the Corporation to discharge temporarily the duties of any such officers;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the borough;

“Sunday school” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether or not on a Sunday;

“Child” means a person under the age of fourteen years;

- “ Hackney carriage ” has the same meaning as in the Town Police Clauses Act 1847 and does not include an omnibus as defined in the Town Police Clauses Act 1889;
- “ The Act of 1886 ” means the Torquay Harbour and District Act 1886;
- “ The Act of 1903 ” means the Torquay Corporation (Water) Act 1903;
- “ The tribunal ” means the tribunal to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;
- “ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;
- “ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;
- “ Principal moneys ” means any moneys borrowed or to be borrowed by the Corporation under

A.D. 1923.

any statutory borrowing power (including borrowing powers under this Act) and not raised by the issue of stock;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

PART II.

STREET IMPROVEMENTS.

Power to
construct
works.

5. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street works hereinafter described together with all necessary or proper approaches works and conveniences connected therewith or incident thereto.

The works hereinbefore referred to and authorised by this Part of this Act will be situate in the borough and are :—

Widening No. 1 A widening of Torbay Road on the north-western side thereof between the corner of the southern side of Seaway Lane and the corner on the northern side of Livermead Lane and the rounding off of those corners.

Widening No. 2 A rounding off of the south-eastern corner of the property known as Shirburn in St. Marychurch Road for a distance of twelve yards or thereabouts in that road and twelve yards or thereabouts in Upton Hill.

Widening No. 3 A rounding off of the south-western corner of the property known as Shirburn aforesaid for a distance of twelve yards or thereabouts in Upton Hill and twelve yards or thereabouts in Shirburn Road.

Widening No. 4 A rounding off of the northern corner of the property known as Furzehill Nursery in St. Marychurch Road for a distance of fourteen yards or thereabouts in that road and of fourteen yards or thereabouts in Hatfield Road.

Widening No. 5 A widening of Newton Road on the north-eastern side thereof between the corner on the western side of Barton Road and the eastern boundary of lands belonging to the house known as "St. Katharine's" and the rounding off of that corner. A.D. 1923.

6.—(1) Subject to the provisions of this Act the Corporation may in connection with the street improvements authorised by this Part of this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer or gas or water main or pipe or wire or apparatus the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section. Subsidiary works.

(2) Provided that the Corporation shall not alter divert or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of that Act.

7. For the protection of the Torquay Gas Company (in this section called "the company") the following provisions shall (unless otherwise agreed between the Corporation and the company) have effect (that is to say) :— For protection of Torquay Gas Company.

(1) Before executing any works under the powers of this Part of this Act which will be situate within five yards from any mains pipes or apparatus of the company (hereinafter referred to as "gas apparatus") the Corporation shall give to the company not less than fourteen days notice in writing of their intention to execute such works together with a plan and section of the works proposed :

A.D. 1923.
—

- (2) If it should appear to the company that the execution of such works would reduce the covering over or in any way endanger any gas apparatus or interfere with or impede the supply of gas the company may give notice to the Corporation to lower or relay or otherwise alter the position of the gas apparatus in such manner as may be reasonably necessary and any difference as to the necessity of any such lowering relaying or alteration shall be settled by arbitration as hereinafter provided :
- (3) The Corporation shall not under the powers of this Part of this Act alter divert or stop up any gas apparatus of the company or do anything to impede the passage of gas through the same until good and sufficient mains pipes works or other apparatus necessary or proper for continuing the supply of gas as efficiently as the same was supplied by the gas apparatus so proposed to be altered diverted or stopped up shall at the expense of the Corporation have been provided and laid down in lieu thereof to the reasonable satisfaction of the company's engineer or in case of dispute between the surveyor and the said engineer to the satisfaction of an arbitrator to be appointed as hereinafter provided :
- (4) Any alteration of any gas apparatus to be made under the provisions of this section or otherwise under the powers of this Part of this Act shall if so required by the company within fourteen days after receipt from the Corporation of the plan and section of the works proposed to be executed by the company and all costs reasonably incurred by the company in so doing shall be repaid by the Corporation on demand Provided that before executing any such alteration the company shall give not less than twenty-four hours' previous notice in writing of their intention to commence the alteration to the surveyor who shall be entitled to superintend the same if he think fit and such alteration shall be carried out with all reasonable despatch and to the reasonable satisfaction of the surveyor :

- (5) The Corporation shall make good all damage done by them to any gas apparatus of the company and shall make full compensation to the company for any loss or damage which the company may sustain by reason of any interference with the gas apparatus or with the private service pipes of any person supplied by the company with gas as may be agreed or failing agreement as shall be settled by arbitration as hereinafter provided : A.D. 1923.
- (6) Any difference arising under this section between the company or their engineer and the Corporation or the surveyor shall be referred to a single arbitrator to be agreed between the company and the Corporation or failing agreement to be appointed by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Act 1889 shall apply to the reference.

PART III.

LANDS.

8. Subject to the provisions of this Act the Corporation may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the street improvements by this Act authorised. Power to take lands.

9. Subject to the provisions of this Act the Corporation may purchase and acquire the lands hereinafter described which are delineated on the deposited plans and described in the deposited book of reference (that is to say) :— Further powers to acquire lands.

(a) For the purposes of their water undertaking—

(1) A piece of land in the borough containing an area of 1·23 acres or thereabouts being the field or enclosure situate on the eastern side of the Corporation's Warberry Reservoir No. 2;

(2) A piece of land in the borough containing an area of 1·17 acres or thereabouts and being a portion of the field or enclosure

A.D. 1923.

No. 537 on the $\frac{1}{2500}$ Ordnance survey map of the county of Devon sheet cxvi. 14 second edition 1906;

(3) A piece of land in the parish of Highweek in the urban district of Newton Abbot in the county of Devon containing an area of .60 acre or thereabouts and being a portion of the field or enclosure No. 604 on the $\frac{1}{2500}$ Ordnance survey map of the county of Devon sheet cix. 12 second edition 1905;

(4) A piece of land in the said parish of Highweek containing an area of 3 acres or thereabouts and being a portion of the field or enclosure No. 401 on the $\frac{1}{2500}$ Ordnance survey map of the county of Devon sheet cix. 11 second edition 1905;

(5) A piece of land in the said parish of Highweek containing an area of 1.30 acres or thereabouts and being the field or enclosure No. 436 on the Ordnance survey map of the county of Devon sheet cix. 11 second edition 1905:

(b) For the purposes of the Abbey Park recreation ground—

A piece of land in the borough containing an area of 184 square yards or thereabouts and situate in the south-west corner of a field or enclosure in the occupation of the Corporation and known as Abbey Park;

and the Corporation may stop up the footpath crossing the piece of land (2) hereinbefore described and may divert the same in the manner shown on the deposited plans.

Period for
compulsory
purchase
of lands.

10. The powers of the Corporation for the compulsory purchase of lands for the purposes of Part II. and this Part of this Act shall cease after the expiration of three years from the passing of this Act.

Owners may
be required
to sell
parts only
of certain
premises.

11.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the

A.D. 1923.

purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

- (a) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term “ the owner ” and the said properties are hereinafter referred to as “ the scheduled properties ” ;
- (b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise ;
- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed ;
- (d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material

A D. 1923.
—

detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal;

- (e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner;
- (f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice;
- (g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done

under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

A.D. 1923.
—

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any premises.

12. For the purposes of determining any question of disputed compensation payable in respect of lands under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twentieth day of November one thousand nine hundred and twenty-two if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently acquired interest.

13. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

PART IV.

STREETS BUILDINGS SEWERS DRAINS &C.

14. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any other Act or byelaw for the time being in force within the borough be deemed to be a new street.

Continuation of existing street to be deemed new street.

A.D. 1923.

Power to
define
future line
of existing
streets.

15.—(1) (a) Section 28 of the Act of 1886 is hereby repealed and where any street repairable by the inhabitants at large is in the opinion of the Corporation narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Corporation may from time to time prescribe and define what shall thereafter be the line of frontage on either side of such street or at or within a distance of fifteen yards from the corner of such street.

(b) The line which in any case the Corporation propose so to prescribe and define shall be distinctly marked and shown on a plan to be signed by the town clerk and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they shall give notice in writing of the deposit of the said plan and of the liabilities imposed by this section to every occupier and to every owner interested whose name and address they can ascertain and in cases where such name and address cannot be ascertained by affixing such notice to or on the premises.

(c) No new building erection excavation or obstruction (being of a permanent character) shall be made or placed nearer to the centre of the street or road than such line except with the consent of the Corporation which may be given for such period and upon and subject to such terms and conditions as they may deem expedient.

(2) The Corporation may and if required so to do by the owner shall purchase and the owner shall if required so to do by the Corporation sell the land for the time being unbuilt upon lying between any line prescribed by them as aforesaid and the street and such land when purchased shall vest in the Corporation as part of the street. Provided that the Corporation shall not be required by any owner to purchase any land under the provisions of this section until a building shall have been erected on the land immediately behind the land to be purchased.

(3) Whenever in any of the above cases the Corporation shall require the line prescribed by them to be observed and kept they shall make full compensation to

the owner and other persons interested in any land for any loss or damage he or they may sustain respectively in consequence of the line of frontage being set back and kept and the Corporation shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation for all damage and loss or injury (if any) sustained by them to such land or building by reason of the Corporation requiring such line to be observed and kept. A.D. 1923.

(4) The amount of any compensation payable under subsection (2) or subsection (3) of this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 and in estimating the amount of such compensation the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street shall be fairly estimated and shall be set off against the said compensation.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

16.—(1) Whenever application shall be made to the Corporation to approve the formation of a new street on any estate or lands it shall be lawful for the Corporation to require that the new street shall be formed of such width as the Corporation shall require : Width of new streets.

Provided that in the event of the Corporation requiring any new street to be of any greater width than the following (hereinafter in this Act called "the prescribed width") namely :—

- (a) In the case of a new street which in the opinion of the Corporation will form a main thoroughfare or a continuation of a main thoroughfare or means of communication between main thoroughfares in the borough or a continuation of a main approach or means of communication between main approaches to the borough sixty feet ; or

A.D. 1923
—

(b) In the case of any other new street the width required for such street by any Act or byelaw for the time being in force within the borough;

the Corporation shall purchase from the owner of such estate or lands and such owner shall sell to the Corporation any additional land necessary to make such new street of such greater width as aforesaid and shall also make compensation to such owner for any loss or damage sustained by him by reason of the Corporation requiring the street to be of such greater width as aforesaid.

(2) The compensation payable by the Corporation in respect of any such additional land as aforesaid shall in default of agreement be a sum equal to the pro rata proportion of the amount which shall at the date on which the Corporation require the new street to be of such greater width be the value of so much of the undeveloped land of the same owner as is or will be developed or improved by the intended works of street formation on the estate of which such additional land forms part.

(3) If by reason of the Corporation requiring any new street to be of any such greater width as aforesaid any land of any owner adjoining such new street will be or has become so reduced in area that it cannot having regard to the provisions of any Act or byelaw in force within the borough be used for building purposes and such owner shall within three months from the date of his receiving notice of such requirement give to the Corporation written notice so desiring the Corporation shall in lieu of paying such owner compensation as aforesaid purchase from such owner and such owner shall sell to the Corporation such reduced area of land and the compensation payable in respect of any such reduced area as aforesaid shall be the amount which shall be the value thereof at the date on which the Corporation require the new street to be of such greater width.

(4) The amount of any compensation payable under this section and any difference thereunder as to whether any land has become so reduced in area as aforesaid shall in default of agreement be determined by arbitration in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 but in estimating the amount of any such compensation the benefit accruing to the property of which such additional land forms part

by reason of the street being of such greater width shall be fairly estimated and set off against such compensation. A.D. 1923.
—

(5) Nothing contained in this section shall require an owner to incur any greater expense in the execution of any street works than he would have been required to incur if the new street had been of no greater width than the width required for such street under any byelaw for the time being in force within the borough and any additional expense incurred in the execution of street works by reason of the new street being of such greater width shall be borne by the Corporation.

17.—(1) When a road footpath or way is about to become a new street within the meaning of the Public Health Acts but the land on one side only of such street has been or is in course of being built on the Corporation may in any case in which they would be empowered to require the owner of the land built on or in course of being built on to widen such road footpath or way to a width prescribed by the byelaws in force in the borough require such owner to widen such road footpath or way so as to give a width not less than one-half of such prescribed width from the old centre line of such road footpath or way to the boundary thereof adjoining such land. Widening of roads when only one side is built upon.

(2) If and when the land on the opposite side of such road footpath or way shall be in course of being built on the owner of such land shall complete the widening of such road footpath or way so as to comply in all respects with the byelaws of the Corporation Provided that he shall not under this subsection be required to pull down any building erected before the passing of this Act.

18.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line") and the Corporation shall be deemed to have Building line in new streets.

A.D. 1923. approved any building line so shown unless within six weeks after the date of submission thereof as aforesaid they shall have signified to the person submitting the same their disapproval thereof.

(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof nor any addition to any house or building until the building line for such street has been approved by the Corporation nor beyond or in front of the building line approved by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Corporation.

(4) In the event of the Corporation requiring as a condition for their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of the street than one-half of the width of the street and ten feet in addition the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(5) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

(7) (a) Any person deeming himself aggrieved by any requirement of or by the Corporation under this section may within fourteen days from the date of such requirement appeal to a petty sessional court and such court may and is hereby empowered to make such

order in the premises and on such terms and conditions as to the court shall seem just. A.D. 1923.

(b) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct.

19. The power of the Corporation to make byelaws with respect to new streets under section 157 of the Public Health Act 1875 shall extend to enable them to require intersecting streets in connection with the laying out of new streets at such intervals as the byelaws may determine. For the purposes of this section "intersecting street" means a side or cross street forming a junction with another street. Byelaws as to intersecting streets.

20. When any passage stairs or approach between the higher and lower parts of the town or which afford access between one public street and another or over which the public have rights of way but which is or are not a highway repairable by the inhabitants at large is or are for want of repairs in such a state as to be a danger to the public or vehicles passing along such passage stairs or approach the Corporation may at the expense of the borough fund carry out such repairs (including the provision of handrails balustrades and parapet fences or walls) as may be reasonably necessary to obviate such danger without rendering themselves liable to the future maintenance of the passage stairs or approach so repaired by them. As to urgent repairs to stairs passages &c.

21.—(1) The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon any private street communicating with any public street shall so fence off channel or embank their lands as to prevent soil sand clay cinders or other like substances from such lands from falling upon or being washed or carried into any public street or sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully. Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Provided that such owner or occupier shall not be responsible for any soil sand clay cinders or other substances from land other than his own although such soil sand clay cinders or other substances may have passed over the land of such owner or For preventing soil from being washed into streets.

A.D. 1923. occupier Provided further that this section shall not apply to any land of a bonâ fide agricultural character or to any woodland.

(2) For the purposes of this section "public street" means so much of a street repairable by the inhabitants at large as is sewered and "private street" means a street not so repairable.

For preventing water flowing on footpaths.

22. Where premises abutting upon any street are so situate that surface water from such premises flows on to or over the footpath of such street the owner of such premises shall within fourteen days after service of a notice by the Corporation for that purpose execute such works as may be reasonably practicable to prevent the water from such premises from flowing over the footpath and in default of compliance with such notice within the period aforesaid such owner shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Forecourts to be fenced off from streets.

23.—(1) Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath or street.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Courts to be flagged and drained.

24.—(1) The owner or owners of premises the occupiers of which use in common any court or yard or passage (not being a highway repairable by the inhabitants at large) or any part of such court yard or passage shall if so required by the Corporation flag asphalt concrete or pave such court yard or passage or any part thereof and make a drain through or along the same and provide gullies and grids in suitable positions and at proper levels and keep such flagging asphaltting concreting or paving and drain gullies and grids in good repair.

(2) If such owner or owners shall for two months after notice in writing from the Corporation fail in any respect to comply with any requirement of the Corporation under the provisions of subsection (1) of this

section he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Corporation may themselves if they think fit do the work and recover the expenses incurred by them in that behalf from such owner or owners.

A.D. 1923.
—

25.—(1) Section 46 (Houses to be purified on certificate of officer of health or of two medical practitioners) of the Public Health Act 1875 shall extend to—

Cleansing of
courts
passages
outbuildings
&c. used in
common.

(a) the walls of any court or yard or passage (not being a highway repairable by the inhabitants at large) used in common by the occupiers of separate premises or any part of such walls (whether or not such walls or part thereof form a portion of any building); or

(b) any sanitary convenience used in common by the occupiers of separate premises or the walls floors seats or fittings thereof or any part of the same; or

(c) any outbuilding used in common as a wash-house or other domestic convenience by the occupiers of separate premises or the walls floors or fittings thereof or any part of the same;

and the provisions of that section (including the penal provision) shall accordingly apply as if each of the owners or occupiers of such separate premises as are hereinbefore mentioned were the owner or occupier of a house or part thereof and with such other modifications as may be necessary.

(2) Where under the powers conferred by this section the Corporation have executed works on the default of two or more owners or occupiers of premises any expenses incurred by the Corporation in the execution of the works shall be paid by such owners or occupiers in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

26.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of

Lopping of
trees over-
hanging
highways.

A.D. 1923. — the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within fourteen days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage and may recover the cost of so doing from the owner or occupier upon whom the notice was served.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within fourteen clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

Street
orderly bins.

27. The Corporation may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or cinder in upon or under any street of such dimensions and in such positions as the Corporation may from time to time determine.

Height of
fences and
hedges at
street
corners.

28.—(1) For the purpose of facilitating traffic by removing obstructions to view the Corporation may give notice to the owner of any land situate at or within a distance of ten yards from the corner of any street or at or near any bend in any street prescribing the height of fences hoardings boundary walls hedges trees and shrubs at such corner or within such distance from the corner or bend as may be prescribed in the notice and thereupon the following provisions shall have effect:—

(a) Unless such notice is withdrawn by the Corporation no person shall erect a fence hoarding or wall or permit a hedge tree or shrub to grow at a greater height than that prescribed contrary to the requirements of the notice;

(b) If required by the Corporation the owner of such land shall reduce the height of any fence hoarding wall hedge tree or shrub which exceeds that prescribed by the notice to a height not exceeding that so prescribed.

(2) Any person who contravenes the provisions of paragraph (a) of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may reduce the height of such fence hoarding wall hedge tree or shrub to the height prescribed by them and the expense incurred by the Corporation shall be repaid to them by the owner of the land. A.D. 1923.
—

(3) If any person for the period of one month after the service of a notice upon him by the Corporation of a requirement under paragraph (b) of subsection (1) of this section fails to comply therewith the Corporation may themselves carry out the requisition of their notice.

(4) The Corporation shall make compensation to the owner or other persons interested in any land for any loss or damage which he or they may sustain in consequence of the giving of any notice under this section but such compensation shall not include the expenses incurred by the Corporation and to be repaid to them under subsection (2) of this section and no compensation shall be paid a second time in consequence of the growth of any hedge tree or shrub above the height prescribed in the notice. The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

(5) Any person aggrieved by any notice given by the Corporation under this section may appeal to a court of summary jurisdiction within one month after the service of such notice provided he gives written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(6) The owner of the land shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any notice of the Corporation under this section.

29.—(1) (a) No person shall erect or bring forward any fence hoarding or other similar structure (in this section referred to as “structure”) on any land in any

As to hoard-
ings and
similar
structures.

A.D. 1923. street in respect of which the Corporation have prescribed a building line under the provisions of this Act or the Public Health Acts or any byelaws made thereunder in front of the building line so prescribed or in any other street beyond the general line of buildings therein to or of a greater height than six feet six inches.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down or remove any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

As to repair
of hoard-
ings.

30. The Corporation may by notice in writing require the owner of any hoarding to maintain the same and any advertising matter thereon in good order and

condition and if any owner shall neglect or refuse to comply with any such notice the Corporation may carry out such alterations or repairs as may be reasonably necessary and recover summarily from the owner any expense incurred by them in so doing. A.D. 1923.

31.—(1) The Corporation may grant to the owner or with the consent of the owner to the lessee or occupier of any premises abutting upon any street repairable by the inhabitants at large or any public highway a licence to construct and use a way (exclusive or otherwise) for himself his servants and agents at all times with or without trucks by means of a bridge over such street or highway for such term as shall be co-extensive with or less than the interest of such owner lessee or occupier in the premises in respect of which such licence shall be given on such terms and with under and subject to such covenants conditions and agreements as to the Corporation may seem fit Provided that no fine rent or other sum of money (except a reasonable sum in respect of legal or other expenses incurred) shall be payable for or in respect of such licence. Power to grant licences for bridges over streets.

(2) Provided also that any licence given under this section shall not in any way interfere with the convenience of persons using such street or highway or affect the rights of the owners of the property adjoining and up to the line of the street or highway.

(3) It shall be a condition of every such licence that the licensee shall at the request of the Corporation and at his own expense remove or alter such bridge in such manner as the Corporation require in the event of their considering such removal or alteration necessary or desirable in connection with the carrying out of improvements to such street or highway at any time and the decision of the Corporation that such removal or alteration is necessary or desirable shall be final and conclusive.

(4) Provided further that in the event of the construction of any such bridge involving the alteration of a telegraphic line of the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration and any such bridge shall for the purposes of the placing or maintenance of over-ground telegraphic lines under the powers conferred by the Telegraph Acts 1863 to 1922 be deemed part of the street or road which it crosses.

A.D. 1923.
—

(5) If any person shall construct a bridge over any such street or highway without such licence or fail to remove or alter the same when required so to do under this section or shall construct or use the same otherwise than in accordance with the terms and conditions of the licence he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

As to
dangerous
buildings.

32.—(1) In any case where a building shall have been reported to the Corporation as dangerous to the inmates thereof or persons working therein or in the case of any building which may appear to the Corporation on the report of the surveyor to be dangerous to such inmates or persons the Corporation may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the town clerk enter at any hour of the day between nine o'clock in the morning and six o'clock in the afternoon with such other persons as he may deem necessary upon such building and examine and inspect the same.

(2) If upon such examination and inspection it shall appear necessary that any works shall be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures in the borough.

Byelaws as
to materials
and con-
struction of
buildings
&c.

33. The Corporation may make byelaws with respect to the following matters (namely):—

- (1) The materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the passing of this Act:

(2) The uniting of buildings and the making and stopping-up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united; A.D. 1923.
—

(3) The testing of drains of new buildings :

(4) The nature size materials position and level of water-closets the provision to be made for securing that water-closets shall be so constructed and supplied with water that they can be adequately flushed by mechanical means and the provision to be made for securing the protection of the same from frost.

34.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised or the top of such last-mentioned building whichever may be the higher. Erection of buildings to greater height than adjoining buildings.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

35.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation. As to erection of retaining walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

A.D. 1923.

—
As to restriction of
air space.

36. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "space about buildings" had been inserted therein before the words "drainage of buildings" in subsection (2) of that section.

Means of
escape from
buildings in
case of fire.

37.—(1) Every building erected after the passing of this Act exceeding two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling sleeping or employed in each upper storey or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2)—(a) From and after the first day of January one thousand nine hundred and twenty-four the Corporation in the case of every existing building exceeding two storeys in height and used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant if in the opinion of the Corporation such building is not provided with proper and sufficient means of escape from each upper storey the upper surface of the floor whereof is above twenty feet from the street level in case of fire for the persons dwelling sleeping or employed in each such upper storey may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

A.D. 1923.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he gives twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and award costs. Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(3) If the owner of the building alleges that any occupier should bear or contribute to the expenses of complying with any requirements of the Corporation under this section he may apply to the county court and thereupon the county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case.

(4) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirements of the Corporation under this section.

(5) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(6) This section shall not apply to any premises to which sections 14 and 15 of the Factory and Workshop Act 1901 apply.

(7) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

38.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Food
storage ac-
commoda-
tion to be
provided.

(2)—(a) Every dwelling-house the erection of which was commenced before the passing of this Act shall where reasonably practicable be provided with a sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow

A.D. 1923.

to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he gives twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(3) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirements of the Corporation under this section he may apply to the county court and thereupon the county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case.

Sanitary
conven-
iences for
workmen
engaged on
buildings.

39.—(1) The contractor or builder engaged in or upon the erection of any new building or the construction or reconstruction of any existing building or of any works shall where practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such construction or reconstruction such water or other closets and urinals in or in connection with such building or works as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Pipes from
slopstones
&c. to be
discon-
nected from
sewer.

40.—(1) The Corporation may require that the pipe from any sink trough slopstone bath or basin in a building erected before the passing of this Act shall be altered so as to conform with the byelaws for the time being in force with respect to the drainage of existing buildings.

(2) Any person neglecting or refusing for a period of twenty-eight days to comply with a notice from the Corporation requiring him to carry out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings. A.D. 1923.
—

41.—(1) The soil pipe of any water-closet shall be properly ventilated and if the same be within a house or building by means of a pipe carried up therefrom not less than two feet above the eaves of the house or building and of any adjoining house or building or (subject to the provisions of section 37 (Water or stack pipe not to be used as ventilating shaft) of the Public Health Acts Amendment Act 1907) by such other method as the Corporation shall direct. Soil pipes to be ventilated.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirements of the Corporation under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

42.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners subject to a right of appeal under subsection (4) of this section. Combined drains.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

A.D. 1923.
—

(3) Provided that the Corporation shall not except by agreement with the owners exercise the powers conferred by this section in respect of any house for the drainage of which plans shall have been previously approved by them.

(4) Any person deeming himself aggrieved by the amount of any costs and expenses proposed to be recovered by the Corporation under this section or the amount to be borne and paid by him may appeal to a petty sessional court provided that such appeal be made within two months from the date of the service of notice by the Corporation intimating the amount payable or their apportionment thereof. On any such appeal the petty sessional court may and is hereby empowered to make such order in the premises and on such terms and conditions as the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct.

As to houses
connected
with single
private
drain.

43.—(1) Where two or more houses or premises are connected with a single private drain which conveys their drainage into a public sewer or into a cesspool or other receptacle for drainage the Corporation shall have all the powers conferred by section 41 of the Public Health Act 1875 and the Corporation may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owners of the houses in such proportions as shall be settled by the surveyor or (in case of dispute) by arbitration under the Public Health Act 1875 or by a court of summary jurisdiction and such expenses shall be recoverable summarily as a civil debt or the Corporation may declare them to be private improvement expenses and may recover them accordingly.

(2) Section 19 of the Public Health Acts Amendment Act 1890 shall cease to be in force within the borough.

(3) For the purposes of this section the expression “drain” includes a drain used for the drainage of more than one building whether owned or occupied by the same person or not.

Power to
require
specially

44. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be

made than they consider necessary for the ordinary sewerage of such street or the lands draining thereto the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

A.D. 1923.

—
enlarged
sewer in
new street.

45. The Corporation may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter re-lay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction.

Power to
lay drains
in private
streets.

46. Where any person has been convicted of causing any drain to be constructed in contravention of section 25 of the Public Health Act 1875 the court may in addition to imposing a penalty under that section order that the drain be laid or relaid or amended or remade as the case may require in accordance with the provisions of that section and if such person shall not comply with the order within one month after the date thereof the Corporation may cause the drain in respect of which such conviction has been obtained to be laid relaid or amended or remade as the case may require and may recover from such person in a summary manner as a civil debt the expense incurred by them in so doing.

Power to
re-construct
drain if laid
in contra-
vention of
Public
Health
Act 1875.

47.—(1) It shall not be lawful for any person to repair any drain soil pipe or sink pipe communicating with any sewer of the Corporation without giving to the Corporation or to the medical officer twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain or pipe without giving the like notice of his intention to do so.

Notice of
intention
to repair
drains &c.

(2) Free access to such drain or work of repair shall be afforded to the sanitary inspector or to any officer of

A.D. 1923. the Corporation authorised in writing by the medical officer for the purpose of inspection.

(3) Any person who offends against this section shall be liable to a penalty not exceeding five pounds.

As to defective drains &c.

48.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain water-closet or soil pipe is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Corporation may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier in a summary manner as a civil debt.

(2) Upon any proceedings under this section the court may inquire whether any requirements contained in any notice given under this section of work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

As to repair of private drains.

49. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Corporation it shall be lawful for the Corporation if in their opinion such drain can be sufficiently repaired at a cost not exceeding twenty pounds to cause the same to be repaired and the expenses of such repairs may be recovered by them from the owner or owners thereof in such proportions as the surveyor shall determine. Provided that where such expenses do not exceed twenty shillings the Corporation may remit the payment of the same by the owner or owners if they think fit.

Water-courses to be culverted in certain cases.

50.—(1) If any watercourse or ditch situate upon any land laid out for building or on which any such land abuts requires in the opinion of the Corporation to be wholly or partially filled up or covered over the Corporation may by notice in writing require the owner or owners

of such lands to substitute for such watercourse or ditch a pipe drain or culvert with all necessary gullies pipes and means of conveying surface water thereinto Provided that nothing in this section shall authorise the Corporation to require the filling up or covering over of any watercourse or ditch wholly or partly belonging to any person other than the owner of the land so laid out for building. A.D. 1923.

(2) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

51.—(1) It shall not be lawful to culvert cover over stop up obstruct or divert any stream or watercourse except in accordance with plans and sections to be submitted to and approved by the Corporation such approval not to be unreasonably withheld or delayed and any person acting in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings : Streams not to be covered over obstructed or diverted except in accordance with plans.

Provided that—

(a) No requirement of the Corporation in relation to such plans and sections shall operate to compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted;

(b) If with the consent of such owner the Corporation shall require him to make provision for the passage of a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Corporation.

(2) If any difference shall arise between the Corporation and such owner as to the expediency or necessity of the works required by the Corporation to be executed under this section such difference shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

52. Nothing in this Part of this Act shall apply to any building (not used as a dwelling-house) railway or work constructed by or belonging to or which may hereafter Saving for railway company.

A.D. 1923.

—

be constructed by or belong to the Great Western Railway Company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by that company and used for the purposes (other than for a dwelling-house) of their undertaking with the authority of Parliament.

PART V.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Power to
close Sun-
day schools
and ex-
clude chil-
dren from
entertain-
ments.

53.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

Restriction
on atten-
dance of
children at
Sunday
schools and
places of
assembly
when in-
fectious
disease
prevails.

54.—(1) No person over the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly in the borough without having procured from the medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

55. For the purposes of the foregoing provisions of this Part of this Act the expression "infectious disease" includes measles german measles whooping cough chicken pox ringworm and influenza.

Extended meaning of "infectious disease" for certain purposes.

56. If any person shall at the request of the Corporation stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Compensation to persons ceasing employment.

57.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Corporation that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Corporation are satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 (Summary order to do act other than a payment of money) of the Summary Jurisdiction Act 1879.

As to filthy premises.

(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

58.—(1) If the medical officer or sanitary inspector has reasonable cause to suppose that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

Houses infested with vermin to be cleansed.

(2) Where on the certificate of the medical officer or sanitary inspector it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper or other covering from the walls of such

A.D. 1923. house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

(6) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation or any vessel or boat lying in the harbour and used for the like purpose and the word "vermin" includes bugs fleas lice and itchmites and their eggs larvæ and pupæ.

Penalty on
withholding
information
from
medical
officer.

59.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably

require for the purpose of enabling measures to be taken to prevent the spread of the disease. A.D. 1923.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

60. If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly Any person who offends against this enactment shall for every such offence be liable to a penalty not exceeding five pounds.

Persons to furnish names of laundrymen to whom clothes &c. from infected houses sent.

61.—(1) For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act a trade business or manufacture shall be deemed to be established not only if it is established for the first time but also if without the consent of the Corporation—

Defining establishment of a new business for purposes of section 112 of Public Health Act 1875.

- (a) it is removed from one set of premises to any other premises; or
- (b) it is renewed on the same set of premises after having been discontinued for a period of six months or upwards; or
- (c) any premises on which it is for the time being carried on are enlarged;

but a trade business or manufacture shall not be deemed to be established for the first time on any premises by reason only that the ownership or occupation of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

A.D. 1923.

(2) Any consent of the Corporation to the establishment of any offensive trade or to the enlargement of any premises on which any offensive trade is carried on may be given so as to continue in force for such period only as the Corporation may prescribe by such consent and section 112 of the Public Health Act 1875 and this section shall be construed accordingly.

(3) If any person shall carry on such offensive trade beyond the period aforesaid he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Discontinu-
ance of
offensive
trade.

62.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act and in the opinion of the Corporation it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to cease to use such premises for the carrying on of such offensive trade. Provided that the formation or expression by the Corporation of an opinion under this subsection shall be deemed to be a determination of the Corporation within the meaning of the section of this Act of which the marginal note is "As to appeals" and that the provisions of that section shall accordingly apply with respect to such opinion as well as to any requirement by the Corporation under this subsection.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person such compensation for any loss sustained by him in consequence of the action of the Corporation as may be agreed upon between the Corporation and such person or as failing agreement shall be determined by arbitration under the provisions of the Arbitration Act 1889. Provided that this subsection shall not apply in the case of any premises with

respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period. A.D. 1923.
—

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

63.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any tent van shed or similar structure used for human habitation or any vessel or boat lying in the harbour and used for the like purpose) would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or any part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within the time to be fixed in the notice. Disinfection in case of tuberculosis.

(b) If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer. Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(c) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the medical officer and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

A.D. 1923.

(d) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable on summary conviction to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable on summary conviction to a penalty of five pounds.

(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the owner free of charge.

(3) If any person sustains any damage by reason of the negligent exercise by the Corporation of any of the powers of subsections (1) and (2) of this section in relation to any matter as to which he is not himself in default compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction.

(4) The person having the charge management or control of any building which is used as an hotel boarding-house or lodging-house and in which there is or has been any person suffering from tuberculosis shall so soon as he becomes aware thereof give notice to the medical officer.

Regulation
dustbins.

64.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable covered galvanised-iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Corporation.

A.D: 1923.

(2) Every owner or occupier having provided any receptacle pursuant to this section shall maintain the same in good order and condition.

(3) Provided that the foregoing provisions of this section shall not apply to any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(5) The owner or occupier of all premises in connection with which a dustbin has been provided as required by this section shall if so required by the Corporation pay to the Corporation on each first day of April after such provision such sum not exceeding five shillings as the Corporation may from time to time by resolution determine for or towards the maintenance repair and renewal by them of such dustbin. Such payments shall be in satisfaction of the obligation of such owner or occupier in regard to the maintenance of such dustbin.

(6) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

65.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

Public
notice to
be given of
provisions
of Part V.
of Act.

A.D. 1923.
—

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section so far as they relate to advertisements in newspapers have been complied with and the production of a certificate signed by an officer or servant of the Corporation that the notice required by this section has been affixed outside the town hall and that handbills have been distributed amongst persons affected or likely to be affected so far as such persons could reasonably be ascertained shall be sufficient evidence that the other provisions of this section have been complied with.

PART VI.

SLAUGHTER-HOUSES.

Provision of
public
slaughter-
houses and
prohibition
of private
slaughter-
houses
thereafter.

66.—(1) At any time after the passing of this Act the Corporation may:—

- (a) Acquire by agreement any premises within the borough used for the purpose of slaughtering animals intended for the food of man (hereinafter referred to as a "slaughter-house") and the interest or interests of any owner lessee or occupier of such premises;
- (b) Agree with the owner lessee and occupier of any slaughter-house for the abolition of slaughtering therein on such terms and conditions as may be arranged between the parties.

(2) At any time after the expiration of three years from the passing of this Act and after the Corporation have provided an adequate slaughter-house in a convenient position (to the satisfaction of the Ministry of Health) and after the expiration of six months from the date of publication by the Corporation in a local newspaper circulating in the borough of notice to that effect no person shall slaughter in the way of trade any animals intended for the food of man except in slaughter-houses provided by the Corporation but this restriction shall not apply to the slaughtering on premises by the owner lessee or occupier thereof of any animals belonging to him and not slaughtered for the purpose of trade or by a farmer on premises occupied by him for agricultural purposes only and if any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds.

A.D. 1923.

(3) The Corporation shall pay or tender compensation to the owner and occupier of any slaughter-house registered before the passing of the Public Health Act 1875 and of any slaughter-house the licence in respect of which is not required to be renewed periodically and closed under the provisions of this section and the amount of such compensation shall in case of difference be settled as cases of disputed compensation are settled under the Lands Clauses Acts and the provisions of those Acts shall apply accordingly Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in respect of the closing of such slaughter-house.

(4) The fees and charges to be demanded and received by the Corporation in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Minister of Health and the Corporation may make byelaws accordingly provided that the Corporation shall have power to charge for any slaughter-house let at a weekly monthly or other rent such sum as may be agreed upon by the Corporation and the renters.

(5) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order or licence of the Minister of Agriculture and Fisheries made or granted thereunder.

67.—(1) (a) The Corporation may by written notice to the owner and occupier of any registered slaughter-house within the borough which from its situation or construction is in the opinion of the Corporation injurious or dangerous to the public health require that the premises shall cease to be used as a slaughter-house on and after such date (not being less than six months from the service of such notice) as may be specified in the notice and no person shall after such date slaughter in the way of trade any cattle horse sheep or pig on the said premises.

Power to close slaughter-houses if injurious to public health.

(b) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its construction is in their opinion injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier

A.D. 1923. — thereof specifying the respects in which such slaughter-house is in their opinion so injurious or dangerous and also specifying their requirements in regard thereto and if within the said period of three months the owner or occupier of such slaughter-house or either of them shall have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation.

(c) Provided also that any such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground that the requirements contained therein are unreasonable and unnecessary in the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister of Health by that Minister and unless and until that Minister shall have determined that the said requirements are reasonable and necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house who shall be injuriously affected by any requirement of the Corporation under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875 Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall be liable for each offence to a penalty not exceeding five pounds.

PART VII.

FOOD.

Rag and
bone dealers
not to sell

68.—(1) It shall not be lawful for any collector of or dealer in rags or bones or similar articles or any person carrying on the business of rag and bone merchant or

any person acting on behalf of any such person as A.D. 1923.
aforesaid to sell or distribute any article of food or any
bladder or balloon inflated or capable of inflation by food or
human breath from any cart barrow or other vehicle bladders
used for the collection of rags bones or similar articles and
or in or from any shop or premises used for or in balloons.
connection with the business of rag and bone merchants.

(2) Every person who shall offend against this
section shall be liable to a penalty not exceeding five
pounds.

69.—(1) Any person who in the manufacture storage As to con-
or preparation for sale of sausages pressed or pickled tamination
meat or other similar commodity does any act or thing of sausages
likely to expose such commodity to infection or con- and other
tamination or omits to take any proper precaution for foods.
the due protection of such commodity from infection or
contamination shall be liable for every such offence to a
penalty not exceeding forty shillings and to a daily
penalty not exceeding twenty shillings.

(2) No person shall be convicted of an offence under
this section unless before the commission of the offence
with which he is charged he shall have had written notice
that such an act or thing as the one complained of is an
offence against this section.

70.—(1) The following provisions shall apply to Conditions
any room shop or other part of a building in which any applicable
article whether solid or liquid intended or adapted for to premises
the food of man is sold or exposed for sale or deposited used for
for the purpose of sale or of preparation for sale or with sale &c. of
a view to future sale or (in the case of hotels or boarding- food.
houses where not less than six persons are boarded or
lodged at any one time and in the case of restaurants
and tea-rooms) with a view to consumption on the
premises :—

(a) No urinal water-closet earth-closet privy ashpit
or other like sanitary convenience shall be
within such room shop or other part of the
building or shall communicate therewith except
through the open air or through an intervening
ventilated space ;

(b) No drain or pipe for carrying off faecal or sewage
matter shall have any inlet or opening within
such room shop or other part of the building

A.D. 1923.
—

and no gully or water-closet shall be placed in such a position that offensive odours from such gully or water-closet can gain access to such room shop or other part of the building;

(c) Refuse or filth whether solid or liquid shall not be deposited or allowed to accumulate in any such room shop or other part of the building except so far as may be reasonably necessary for the proper carrying on of the trade or business;

(d) Such room shop or other part of the building and the walls and ceilings thereof shall be whitewashed cleansed or purified at reasonable intervals and whenever so required by the Corporation on the report of the medical officer or the sanitary inspector and all articles apparatus and utensils therein shall at all times be kept clean and wholesome and due cleanliness shall be observed by persons engaged in such room shop or other part of the building.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of the building wherein any of the conditions prohibited by this section exist or does or knowingly permits any act or thing therein in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not apply to any factory within the meaning of the Factory and Workshop Act 1901.

For regu-
lating manu-
facture and
sale of ice-
cream &c.

71.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who—

(a) causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain;
or

A.D. 1923.

(b) in the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(c) omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any persons so employed or resident suffering from any infectious disease the medical officer or the sanitary inspector or any other officer who is duly authorised by the Corporation in that behalf may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in any of the premises and the Corporation shall compensate the owner of the ice-cream or similar commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) (a) The medical officer and the sanitary inspector and any other officer who is duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein and any cart barrow or stand in or on which the same are offered for sale as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(b) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as

A.D. 1923. — aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

Prohibition
of blowing
or inflating
carcases.

72. It shall not be lawful to blow or inflate (except by mechanical means) the carcase or any part of the carcase of any animal slaughtered within the borough or to bring into the borough any carcase or part of a carcase so blown or inflated and any person so blowing or inflating any carcase or part of a carcase or bringing into the borough or exposing or depositing for sale a carcase or any part thereof so blown or inflated shall be liable to a penalty not exceeding five pounds.

No place
used for
storage &c.
of food to
be used as
a sleeping
place &c.

73.—(1) No room shop or other part of a building in which any food is sold or prepared or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of the building as a sleeping place in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

Provisions
as to re-
tailers of
milk.

74. The provisions of section 34 (Power for Privy Council to make orders relative to dairies cowsheds and milkshops) of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Corporation under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the borough for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets.

Power to
prohibit
persons in
advanced
stage of
tuberculosis
from

75.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the lung in an advanced stage and that he is employed in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such

employment would in the judgment of the said medical officer be detrimental to the public health the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage. A.D. 1923.
—
handling
&c. food.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so.

(3) If such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

76.—(1) Where it is shown that any animal or article liable to be seized under section 116 of the Public Health Act 1875 (as extended by section 28 of the Public Health Acts Amendment Act 1890) and found in the possession of any person was sold to him by another person for the food of man (the proof that the same was not sold for the food of man resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in the last-mentioned section unless he proves that at the time he sold the animal or article he did not know and had no reason to believe that it was in such condition. Penalty on
original
vendor of
unsound
food.

(2) Where any animal or article of food has been condemned by a justice under section 117 of the Public Health Act 1875 as extended by section 28 of the Public Health Acts Amendment Act 1890 the person to whom the same belongs or did belong at the time of deposit of such article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in section 117 of the Public Health Act 1875 unless he proves that at the time of such deposit he did not know and had no reason to believe that the said article was in such a condition as to be liable to be so condemned.

A.D. 1923.

(3) Before any animal or article liable to be condemned under section 117 of the Public Health Act 1875 as extended by section 28 of the Public Health Acts Amendment Act 1890 and this section is dealt with by a justice the medical officer or the sanitary inspector shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or sanitary inspector of the intention of the medical officer or sanitary inspector to have the same dealt with by a justice and any person who may be liable in respect of such animal or article to a prosecution under the aforesaid provisions shall be entitled to attend the proceedings before the justice and to be heard with his witnesses upon the application for the condemnation of any such animal or article.

Byelaws as
to inspection of
meat.

77.—(1) The Corporation may make and enforce byelaws (a) for preventing meat (other than foreign meat) or any part of the carcass of an animal brought into the borough and intended for the food of man from being used for the food of man or being offered for sale or sold or deposited for sale or for the preparation for sale until after inspection by an officer of the Corporation (b) for preventing the removal of any carcass or any part thereof from any slaughter-house until after such inspection as aforesaid and (c) for requiring notice of the slaughtering of any animal suffering from accidental injury or illness to be given to the medical officer by the person responsible for such slaughter.

(2) Provided that any byelaw made by the Corporation for the purposes (a) or (b) mentioned in subsection (1) of this section shall provide (i) that any person bringing any meat (other than foreign meat) or any part of the carcass of an animal into the borough or intending to slaughter any animal at any slaughter-house shall give to the medical officer reasonable notice in writing of the day and hour and place in the borough on and at which the meat or any part of the carcass can be inspected as aforesaid or on and at which the slaughtering is intended to take place as the case may be and (ii) that if within such reasonable period after the notified hour as may with due regard to the requirements of the trade be prescribed by the byelaw an officer of the Corporation shall not have attended at the place so notified for the purpose of inspection the

restriction in subsection (1) of this section referred to shall not apply to the meat or any part of the carcase in respect of which the notice was given. A.D. 1923.

(3) With a view to facilitating the carrying into effect of any byelaws made in pursuance of this section the Corporation may enter any slaughter-house which is situate outside the borough but within a radius of six miles from the town hall and not within the urban districts of Paignton and Newton Abbot for the purpose of inspecting any carcase or any part thereof intended for sale or consumption in the borough.

78. The Corporation may construct and maintain a refrigerator or cold-air store with all machinery apparatus and appliances necessary for the proper working and use thereof and for the storage and preservation of meat and other articles of food and may demand and take in respect of the use of any such refrigerator or cold-air store such charges as they may determine. Power to establish cold-air stores &c.

79. The Corporation may from time to time make byelaws for securing the cleanliness and protection from contamination of articles intended for human food while being conveyed through or along any street. Byelaws as to conveyance of food in streets.

80.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. Public notice to be given of provisions of Part VII. of Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section so far as they relate to advertisements in newspapers have been complied with and the production of a certificate signed by an officer or servant of the Corporation that the notice required by this section has been affixed outside the town hall and that handbills have been distributed amongst persons affected or likely to be affected so far as such persons could reasonably be ascertained shall be sufficient evidence that the other provisions of this section have been complied with.

A.D. 1923.

PART VIII.

HACKNEY CARRIAGES.

Provisions
as to motor
vehicles let
for hire.

81. The provisions of the Town Police Clauses Act 1847 and the byelaws of the Corporation in force with respect to hackney carriages except so much of such byelaws as relates to the fixing of fares shall apply to every horse-drawn or motor vehicle standing or plying for hire notwithstanding that such vehicle stands or plies for hire on private premises only. Provided that this section shall not apply to any such vehicle which is kept and used solely for the purpose of being let on hire by the day or for longer periods of time or for journeys under special contract on special occasions or to an omnibus as defined in the Town Police Clauses Act 1889.

As to public
vehicles
plying for
hire at
railway
stations.

82. The provisions of the Town Police Clauses Act 1847 and the byelaws of the Corporation in force with respect to hackney carriages shall be as fully applicable in all respects to hackney carriages standing or plying for hire at any railway station or railway premises as if such railway station or railway premises were a stand for hackney carriages or a street. Provided that the provisions of this section shall not apply to any vehicle belonging to and used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the drivers or conductors of such vehicle. Provided also that nothing in this section shall empower the Corporation to fix the site of the stand or starting place of any hackney carriage in any railway station or railway premises or in any yard belonging to a railway company except with the consent of the railway company owning such station or yard.

PART IX.

WATER.

Charges for
hose pipes.

83. Where water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept for private use the Corporation may if a hose pipe or other similar apparatus is used

charge any additional sum not exceeding one pound per annum and (where more motor cars than one are ordinarily kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first and any sum chargeable under the provisions of this section shall be paid quarterly in advance and be recoverable in all respects with and as the water rate. A.D. 1923.

84. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Corporation or other officer duly authorised in that behalf by the Corporation and shall be recoverable summarily as a civil debt. Maintenance of common pipe.

85. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe. Interference with valves pipes and fittings.

86.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus in the limits of the Corporation for the supply of water the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes. Power to person liable to maintain pipes &c. to open ground.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay down maintain repair or remove any communication pipe

A.D. 1923. — and for that purpose to open or break up any street in the limits of the Corporation for the supply of water execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation in so doing shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Water re-
ceipts and
expenses.

87.—(1) All moneys from time to time received by the Corporation in respect of their water undertaking (including the interest on any reserve fund by this Act authorised in connection with that undertaking when that fund amounts to the prescribed maximum) shall be carried to and shall form part of the borough fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund.

(2) Section 70 of the Act of 1903 is hereby repealed.

Water
charges.

88. Whenever the total moneys from time to time received by the Corporation after the passing of this Act in respect of their water undertaking (in this section referred to as "the undertaking") shall exceed by more than one thousand pounds the total of the amounts paid by them after the passing of this Act in respect of the following matters (that is to say) :—

Working and establishment expenses and cost of maintenance of the undertaking including all costs expenses penalties and damages incurred or payable by the Corporation consequent upon any proceedings by or against the Corporation their officers or servants in relation to the undertaking;

The interest and dividends on principal moneys and stock applied by the Corporation for the purposes of the undertaking;

The requisite appropriations instalments or redemption fund payments in respect of such principal moneys and stock as last aforesaid;

All other expenses (if any) of maintaining the undertaking not being expenses properly chargeable to capital;

The amount (if any) paid to a reserve fund in respect of the undertaking under the provisions of the section of this Act of which the marginal note is " Reserve funds ";

A.D. 1923.

then the water rents and charges to be made in the next succeeding year shall be as nearly as possible such that at the end of that year the said excess shall not be more than one thousand pounds.

PART X.

ELECTRICITY.

89. Section 1 of the Fourth Schedule to the Torquay Electric Lighting Order 1891 is hereby repealed and in lieu thereof the following provisions shall apply and have effect :—

Increase of maximum charges for electricity.

Where the Corporation charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter—

(a) In respect of the quarters ending thirty-first March and thirty-first December for any amount of energy up to fifteen units twelve shillings and sixpence and for each unit over fifteen units tenpence;

(b) In respect of the quarters ending thirtieth June and thirtieth September for any amount up to ten units eight shillings and fourpence and for each unit over ten units tenpence.

90.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade or Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

Period of error in defective meters.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

A.D. 1923.

—
As to supply
of elec-
tricity by
agreement.

91. If any consumer of electricity supplied by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement the Corporation may if they think fit discontinue to supply electricity to such consumer until they are satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement. Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement.

Power to
recover
charge for
re-connect-
ing.

92. Any expenses reasonably incurred by the Corporation in re-connecting any electric line or other work through which electricity may be supplied which may have been lawfully cut off or disconnected by reason of any default of the consumer may be recovered by the Corporation in like manner as expenses lawfully incurred by them in such cutting off or disconnecting.

Appropriation of land
for sub-
stations &c.

93.—(1) The Corporation may appropriate the following land belonging to them and may thereon erect and maintain sub-stations and stations for converting storing distributing or transforming electrical energy together with all works and apparatus necessary therefor or ancillary thereto and may use such land for any purpose of their electricity undertaking except the generation of electricity.

(2) The land hereinbefore referred to is a piece of land containing three thousand five hundred square feet or thereabouts being a portion of a piece of land on the north side of the new town hall bounded on the north by Magdalene Road on the south by the new town hall on the east by Lymington Road and on the west by property belonging to the rector and churchwardens of the church of St. Mary Magdalene Upton.

As to offices
and show-
rooms.

94. The Corporation may in connection with and for the purposes of their electricity undertaking fit up show-rooms and offices and exhibit specimen installations and give demonstrations of the uses to

which electrical energy can be put and may appoint and pay persons for the purposes aforesaid. A.D. 1923.

95. All moneys from time to time received by the Corporation in respect of their electricity undertaking (including the interest on any reserve fund by this Act authorised in connection with that undertaking when that fund amounts to the prescribed maximum) shall be carried to and shall form part of the borough fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund. Electricity receipts and expenses.

PART XI.

GAS.

96. The Corporation may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas charges not exceeding in any case ten per centum and in addition thereto or irrespective thereof they may if they think fit allow discounts or rebates to large consumers not exceeding in any case fifteen per centum. Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas charges. Discounts.

97. At least twenty-four hours' notice shall be given to the Corporation by every gas consumer either personally at the gas office of the Corporation or in writing before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Corporation. Gas consumers to give notice to Corporation before removing.

98. A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be Notice to discontinue

A.D. 1923.

supply of
gas.

of any effect unless it be in writing signed by or on behalf of the consumer and left at or sent by post to the gas office of the Corporation or be given by the consumer personally at the gas office of the Corporation.

Removal of
fittings
where gas
supply dis-
continued.

99. The power to enter premises and remove pipes meters and fittings or apparatus conferred upon the Corporation by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Corporation shall not require to take a supply of gas from the Corporation or to hire all or any of the pipes meters fittings or apparatus belonging to the Corporation.

As to con-
struction
and placing
of pipes &c.
between
mains and
meters.

100. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Corporation may specify the minimum size and the material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Corporation's mains and the meter so far as such pipes and fittings are intended to be covered over :
- (2) The Corporation may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper circulating within the limits of the Corporation for the supply of gas and a copy thereof shall be kept exhibited in the gas office of the Corporation :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Corporation's main but within the outside wall of the building :

A.D. 1923.

Provided that in the case of any building which is the property of the Great Western Railway Company and used for railway purposes and in connection with which there is provided outside the building accommodation reasonably approved by the Corporation for the meter or a separate meter house such meter may be placed in such accommodation or meter house instead of within the outside wall of the building :

- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Corporation and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation. Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Corporation's specification or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Corporation refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Corporation's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

101. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive from the Corporation for the purposes of a stand-by only a supply of gas for any premises for which he has at the same time a supply of gas or electricity unless he shall have agreed to pay to the Corporation such minimum annual sum as will give to them a reasonable return on

Supply of gas where consumer has separate supply.

A.D. 1923. — the capital expenditure and will cover charges incurred by them in order to meet the possible maximum demand for the premises for which the stand-by supply is demanded or received and the sum so to be paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Power to
lay pipes
in private
streets.

102. The Corporation may on the application of the owner or occupier of any premises within the limits of the Corporation for the supply of gas abutting on any street laid out but not dedicated to public use supply those premises with gas and for that purpose the provisions of the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation with any Act relating to the gas undertaking of the Corporation :

Provided that the Corporation shall not break up any street belonging to or repairable by the Great Western Railway Company except upon such terms and conditions as may be agreed between the Corporation and the Great Western Railway Company or failing agreement as may be settled by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of the Corporation.

Dwelling-
houses for
employees
and other
buildings.

103. The Corporation may purchase or take on lease and maintain houses and buildings for persons in their employment in connection with their gas undertaking and offices showrooms and other buildings for the purposes of that undertaking and they may also erect maintain and let any such buildings upon any land for the time being belonging or leased to the Corporation for those purposes.

Anti-
fluctuators
to be used
with gas
engines.

104.—(1) The Corporation may by notice in writing require a consumer of gas supplied by the Corporation and used for the working of an engine to fix and use an efficient anti-fluctuator in a suitable position upon the premises upon which the engine is in use or to keep any anti-fluctuator fixed and used by the consumer in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair.

(2) If the consumer after any such notice as afore-said fails to fix and use an efficient anti-fluctuator or to

keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Corporation may cease to supply him with gas. A.D. 1923.

(3) The Corporation may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Corporation and for the purpose of ascertaining whether the anti-fluctuator is efficient and in proper order and repair may take off remove test and inspect the anti-fluctuator such taking off removing testing and inspecting to be done at the expense of the Corporation if the anti-fluctuator be found efficient and in proper order but otherwise at the expense of the consumer.

(4) For the purposes of this section an anti-fluctuator means an apparatus for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

105.—(1) Every consumer of gas supplied by the Corporation who uses air at high pressure for or in connection with the consumption of such gas (in this section referred to as "high-pressure air") shall if required to do so by the Corporation provide and fix in a suitable position and use an efficient valve or other appliance for preventing the admission of such air into the service pipe or any main through which such gas is supplied and shall at all times at his own expense keep in proper order and repair any such valve or other appliance as aforesaid which shall have been provided and fixed whether upon such requirement or otherwise.

Provision
of valve
where high-
pressure air
is used.

(2) It shall not be lawful at any time after the passing of this Act for any consumer of gas supplied by the Corporation to commence to use high-pressure air unless and until he shall have given to the Corporation not less than fourteen days' previous notice in writing of his intention to do so.

(3) Every person who at the date of the receipt by him of any such demand note as is referred to in paragraph (a) of subsection (5) of this section is using high-pressure air shall within one month after that date

A.D. 1923.

give to the Corporation notice in writing of such use and if within one month after the giving of such notice the Corporation require the consumer giving the same to provide and fix such a valve or other appliance as aforesaid it shall not be lawful for him after the expiration of fourteen days from the receipt of the requirement to continue to use high-pressure air unless before such expiration he shall have complied with the requirement.

(4) If any consumer shall fail to comply with any requirement of the Corporation or any obligation under this section the Corporation may cease to supply gas to him and shall not be under any obligation to resume such supply until the default shall have been remedied to their satisfaction.

(5) The Corporation shall give notice of the effect of the foregoing provisions of this section—

(a) (in the case of all persons who at the date of the passing of this Act are consumers of gas supplied by the Corporation) on the demand notes for gas charges payable to the Corporation issued next after that date; and

(b) (in the case of any person becoming after the passing of this Act a consumer of gas supplied by the Corporation) on the first of such demand notes delivered to such person after he shall have become a consumer.

(6) The Corporation shall have access at all reasonable times to all premises supplied by them with gas in or upon which high-pressure air is used or the Corporation have reason to believe that high-pressure air is or may at the time be used in order to ascertain whether any such valve or appliance as aforesaid is efficient or is in proper order and repair or whether such a valve or appliance is provided and fixed where necessary.

(7) The Corporation shall be at liberty to take off remove test inspect and replace any such valve or other appliance as aforesaid such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the valve or other appliance be found in proper order but otherwise at the expense of the consumer.

106.—(1) All moneys from time to time received by the Corporation in respect of their gas undertaking (including the interest on any reserve fund by this Act authorised in connection with that undertaking when that fund amounts to the prescribed maximum) shall be carried to and shall form part of the borough fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund.

A.D. 1923.

—
Gas receipts
and ex-
penses.

(2) Section 60 of the St. Marychurch Local Board Act 1868 and so much of Article XI. of the Torquay Extension Order 1900 as relates to the application of the revenue of the gas undertaking is hereby repealed Provided that notwithstanding anything in any Act or Order to the contrary in the event of any sale by the Corporation of the gas undertaking the net proceeds of such sale shall be applied by the Corporation to capital purposes (for which the Corporation are or shall be authorised to borrow money) for the benefit or improvement of that part of the borough which immediately before the passing of this Act comprised the parish of St. Marychurch.

107. Whenever the total moneys from time to time received by the Corporation after the passing of this Act in respect of their gas undertaking (in this section referred to as "the undertaking") shall exceed by more than one thousand pounds the total of the amounts paid by them after the passing of this Act in respect of the following matters (that is to say):—

Gas charges.

Working and establishment expenses and cost of maintenance of the undertaking including all costs expenses penalties and damages incurred or payable by the Corporation consequent upon any proceedings by or against the Corporation their officers or servants in relation to the undertaking;

The interest and dividends on principal moneys and stock applied by the Corporation for the purposes of the undertaking;

The requisite appropriations instalments or redemption fund payments in respect of such principal moneys and stock as last aforesaid;

All other expenses (if any) of maintaining the undertaking not being expenses properly chargeable to capital;

A.D. 1923.
—

The amount (if any) paid to a reserve fund in respect of the undertaking under the provisions of the section of this Act of which the marginal note is "Reserve funds";

then the gas rents and charges to be made in the next succeeding year shall be as nearly as possible such that at the end of that year the said excess shall not be more than one thousand pounds.

PART XII.

PARKS AND RECREATION GROUNDS.

Power to
close cer-
tain recrea-
tion
grounds.

108.—(1) The provisions of section 52 of the Act of 1903 shall extend and apply to the recreation grounds of the Corporation known as Abbey Park and Princess Gardens :

Provided that not more than one-half of the total area of the parks pleasure grounds and recreation grounds of the Corporation shall be set apart at one and the same time.

(2) The provisions of section 54 of the Act of 1903 shall extend and apply to the moneys (if any) received by the Corporation in pursuance of the provisions of section 52 of that Act as applied by this section.

PART XIII.

CONSOLIDATION OF PARISHES.

Consolida-
tion of
parishes.

109.—(1) As from the first day of April one thousand nine hundred and twenty-four (in this Part of this Act referred to as "the commencement of this Part of this Act") the parish of Tormoham and the parish of St. Marychurch shall be consolidated into one parish so as to form a new parish to be called "the parish of Torquay" (in this Part of this Act referred to as "the parish") and the parish shall be included in the Newton Abbot Union and all orders in force in that union shall be in force within and apply to the parish.

(2) Subject to the provisions of section 60 of the Local Government Act 1894 the parish shall be divided

into nine wards which wards shall be respectively
co-terminous in area with the wards of the borough and
shall respectively elect guardians as follows:—

A.D. 1923.
—

The Torre Ward	...	...	2 guardians.
The Strand Ward	...	...	2 guardians.
The Waldon Ward	...	...	2 guardians.
The Upton Ward	...	...	2 guardians.
The Torwood Ward	...	...	2 guardians.
The Ellacombe Ward	...	...	2 guardians.
The Chelston Ward	...	...	1 guardian.
The Babbacombe Ward	...	...	2 guardians.
The St. Marychurch Ward	...	...	2 guardians.

(3) The persons who represent as guardians the existing wards of the borough immediately before the commencement of this Part of this Act shall continue to hold office as guardians for the corresponding wards of the borough until the date on which they would have retired from office but for the operation of this Act.

(4) Subject to the provisions of this Act and of the enactments applied thereby as to adjustments all property (other than such as may be held for charitable or ecclesiastical purposes and other than cash balances) and all debts and liabilities of the existing parishes of Tormoham and St. Marychurch including in such property any property held under any trust for any of such parishes (in this Act referred to collectively as "the existing parishes") or for the inhabitants or parishioners thereof shall become the property debts and liabilities of the parish and in case of property held in trust as aforesaid shall be held in trust for the parish or for the inhabitants or parishioners thereof for the same purpose as heretofore.

(5) All arrears of rates made by the overseers of the existing parishes respectively which on the commencement of this Part of this Act are due or owing in respect of hereditaments in those parishes shall be collected and recovered by the overseers of the parish and the same when collected and recovered and all cash balances in the hands of the overseers of the existing parishes shall be applied (so far as may be necessary) towards the discharge of any precept or order in respect of expenses incurred before that date and which are in force at that date and are not satisfied and (subject to the foregoing) all balances and any other moneys in the

A.D. 1923. — hands of the overseers of the existing parishes on the same date shall be handed over by them to the overseers of the parish.

(6) It shall not be lawful for the overseers of the existing parishes to make or recover any rate in respect of the half-year ending on the thirty-first day of March one thousand nine hundred and twenty-four or in respect of any part of that half-year for the existing parishes but any such rate shall be made and recovered by the overseers of the parish.

(7) All rate books books of account minutes of proceedings deeds papers and writings belonging to the existing parishes shall be deposited at the town clerk's office in the borough or at some office or place appointed by the Corporation and be there kept and preserved by the town clerk or some officer to be appointed by the Corporation and the ratepayers shall at all times have the same right of inspecting and making extracts from such books and minutes as they would have had if they had continued to be ratepayers of the existing parishes.

(8) All valuation lists in relation to hereditaments and premises in the existing parishes and in force on the appointed day shall until new valuation lists are made be and be deemed to be part of the valuation list for the parish.

(9) All precepts and orders for moneys to be raised by way of rates in the borough for any period ending on any date after the commencement of this Part of this Act shall not be served until that date and shall then be served upon the overseers of the parish.

(10) Notice of the provisions of this section shall be given by the Corporation to the overseers of the two parishes in question, and to the Devon County Council and to the guardians of the Newton Abbot Union.

Council to
be over-
seers.

110.—(1) (a) Notwithstanding anything to the contrary contained in any Act or Order from and after the commencement of this Part of this Act the council shall be the overseers of the parish and all powers duties and liabilities exerciseable by or attaching to overseers shall be exerciseable by and extend and apply to the Council acting as overseers :

A.D. 1923.

Provided that any person designated by the Corporation as hereinafter mentioned to perform duties in relation to the preparation of the jurors' book and the register of electors shall have the powers and duties and be subject to the liabilities of overseers under the enactments relating to these subjects :

Provided also that the town clerk shall have the powers and duties and be subject to the liabilities of an overseer or overseers with respect to the matters specified in the Second Schedule to this Act and any other powers and duties of an overseer or overseers with respect to matters similar in character to the matters specified in the said Second Schedule which may be transferred to the town clerk by order of the Minister of Health who is hereby empowered to make any such order accordingly.

(b) The overseers of the existing parishes shall go out of office at the commencement of this Part of this Act.

(c) Separate accounts shall be kept of the transactions of the council acting as overseers and the enactments relating to the audit of the accounts of overseers shall apply to such separate accounts.

(2)—(a) After the thirty-first day of March one thousand nine hundred and twenty-four every precept issued by the guardians of the Newton Abbot Union for the purpose of obtaining money which is ultimately to be raised by the council acting as overseers out of the consolidated rate to be raised within the borough under the provisions of this Act shall be sent to the council at their office addressed to the council or the town clerk.

(b) Any document required to be signed by the overseers may be signed by the town clerk.

(3) References in any Act to the overseers of the parish shall be construed as references to the council and the legal interest in all property vested in the overseers of either of the existing parishes (other than property connected with the affairs of the church or held for an ecclesiastical charity within the meaning of the Local Government Act 1894) shall vest in the council.

A.D. 1923.

(4) Where the overseers of either of the existing parishes as such are either alone or jointly with any other persons trustees of any parochial charity such number of members of the council or other persons not exceeding the number of the overseer trustees as the council may appoint shall be trustees in their place.

Transfer
to Corpora-
tion of
powers of
vestry.

111. As from the commencement of this Part of this Act all and every right custom privilege or power other than in matters ecclesiastical vested in or exerciseable by the parishioners ratepayers or inhabitants in vestry assembled of either of the existing parishes shall cease to be so vested or exerciseable and every such right custom privilege or power shall for and within the parish be vested in and exerciseable by the Corporation.

Appoint-
ment of
assistant
overseers
and other
officers.

112.—(1) Subject to the provisions of any order which the Minister of Health may hereafter make the provisions of the orders heretofore made by the Local Government Board and conferring upon the council the power of appointing and revoking the appointment of assistant overseers of the existing parishes shall extend and apply to the appointment by the council and revocation of the appointment by the council of assistant overseers of the parish.

(2) The council may appoint and remove such officers as they deem necessary to assist in the discharge of the duties of overseers and may fix the remuneration to be paid to such officers.

(3) The registration officer may before the preparation of the autumn register in any year require the Corporation to designate one or more of the assistant overseers or other officers appointed under this section to perform the duties of overseers in relation to the preparation of the jurors' book and register of electors in that year and the Corporation shall forthwith comply with any such requirement of the registration officer. The remuneration of or expenses incurred by any such officer in respect of the performance of such duties shall continue to be payable in accordance with the provisions of the enactments relating to these subjects.

(4)—(a) Any assistant overseer appointed by the council and all officers appointed or to be appointed by the council to assist in the discharge of the duties

of overseers shall give such security to the Corporation for the due performance of their duties as may be required by the Corporation and the district auditor appointed by the Minister of Health shall report thereon annually to the Corporation and such securities shall be deposited with the Corporation and not with the board of guardians. A.D. 1923
—

(b) Assistant overseers appointed by the council shall not be required to give security to the guardians of the Newton Abbot Union under section 61 of the Poor Law Amendment Act 1844.

(5) Any person holding at the commencement of this Part of this Act the office of assistant overseer for either of the existing parishes shall after the commencement of this Part of this Act hold and perform the duties of the office of assistant overseer of the parish. The remuneration to which at the commencement of this Part of this Act any such assistant overseer is entitled for performing the duties of his office shall be paid out of the poor rates of the parish and any such assistant overseer shall continue to hold office by the same tenure and upon the same terms and conditions as heretofore and while performing the same duties shall receive not less remuneration than heretofore.

113. Nothing in this Act shall affect land tax or the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which is now applicable for the benefit of either of the existing parishes affected by this Act. Saving for land tax ecclesiastical divisions and charities.

114. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Act the following provisions shall have effect (that is to say):— Settlement and removal of poor.

Every person who at the commencement of this Part of this Act has acquired or is in the course of acquiring a settlement in either of the existing parishes by reason of any residence completed or in course of completion or of any act or thing done or in course of being done or of any status condition right or privilege acquired or created

A.D. 1923.
—

or in course of acquirement or creation in either of the existing parishes shall be deemed to have acquired or to be in course of acquiring a settlement in the parish.

County rate
basis.

115. Subject to any future revision the basis or standard of the county rate for the county shall be altered :—

- (a) By the omission therefrom of the amount appearing therein as the total annual value of the property in the existing parishes;
- (b) By the insertion therein as the total annual value of the property in the parish of the amount appearing therein as the total annual value of the property in the existing parishes.

As to
preparation
of autumn
register
1923.

116. In the preparation of the autumn register 1923 so far as it relates to any area affected by this Part of this Act it shall be competent to the registration officer to frame the register in separate parts for each area which will constitute a registration unit after the commencement of this Part of this Act instead of in separate parts for each area constituting a registration unit before the commencement of this Part of this Act.

Saving for
contribu-
tion orders
and pre-
cepts.

117. Notwithstanding the alterations effected in the existing parishes by this Act and subject to the foregoing provisions of this Act all contribution orders made by the guardians of the Newton Abbot Union before the commencement of this Part of this Act shall be as valid in law as if this Act had not been passed.

Saving for
Minister of
Health.

118. Nothing in this Act shall be deemed to restrict any power conferred upon the Minister of Health by any Act of Parliament relating to the relief of the poor and passed before the commencement of this Part of this Act.

PART XIV.

RATING.

Commence-
ment and
interpre-
tation.

119.—(1) This Part of this Act shall come into operation as from the first day of April one thousand nine hundred and twenty-four.

(2) In this Part of this Act unless the subject or context otherwise requires— A.D. 1923.

“The parish” means the parish of Torquay as constituted under the provisions of this Act;

“The overseers” means the council as overseers of the parish;

“The poor rate” means the poor rate of the parish;

“The consolidated rate” means the poor rate as by this Part of this Act authorised to be levied and collected.

120.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund and general district rate or either of them shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the borough or to the rate which the Corporation may levy under Article XI. (4) (d) of the Torquay (Extension) Order 1900 or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate.

All expenses of Corporation to be paid out of borough rate.

(2) The district fund shall be closed and any balance which on the date upon which this Part of this Act comes into operation is standing to the credit or to the debit of the district fund or the general district rate respectively shall from and after that date be transferred to the credit or the debit (as the case may be) of the borough fund and any moneys owing to the Corporation in respect of or in connection with the district fund or of the general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund.

121. The overseers may make an allowance by way of discount not exceeding five per centum on the amount due in respect of any consolidated rate or any

Discount on consolidated rate.

A.D. 1923. instalment thereof from every person who pays the same within such time after demand of the rate or after the date when any instalment falls due as the case may be as they shall prescribe and in any such case the overseers shall make such allowance accordingly Provided that any such allowance shall in every case be of equal amount under like circumstances Provided also that notice of this enactment shall be endorsed on every demand note for rates.

Water rent may be collected with consolidated rate.

122.—(1) Any water rent or charge payable to the Corporation may be collected together with the consolidated rate and the same books may be used for the said rents charges and rates.

(2) The consolidated rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the consolidated rate water rent or charge shall be in such form as the Minister of Health may from time to time prescribe.

Contribution to borough rate to be paid out of poor rate.

123. The contribution of the parish to the borough rate shall be paid by the overseers out of the poor rate, to be made for the parish and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall apply to such contribution.

Poor rate to be called "the consolidated rate."

124. The poor rate (inclusive of the contributions to the borough fund levied in pursuance of the provisions of this Act) shall be called "the consolidated rate" but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate.

Application of Poor Rate Assessment and Collection Act 1869.

125. The following provisions shall have effect in the application of the Poor Rate Assessment and Collection Act 1869 (in this section hereinafter called "the said Act"), within the borough and the parish:—

(1) The Corporation shall be substituted for and have all the powers of the vestry in and in relation to the provisions of the said Act:

(2) The commission which may be allowed under section 3 of the said Act may be of such amount

A.D. 1923

not exceeding twenty per centum as the Corporation may from time to time determine :

- (3) The abatement and deduction and the further abatement and deduction which may be allowed under section 4 of the said Act of fifteen per centum and fifteen per centum respectively may be of such amounts not exceeding ten per centum and ten per centum respectively as the Corporation may from time to time determine :
- (4) The amount of such commission or abatement and deduction as aforesaid which may be from time to time allowed as aforesaid may vary according to the rateable value of the hereditament to which for the time being it shall be determined by the Corporation to apply provided that such amount shall be the same for the time being in the case of all hereditaments for the time being of a like rateable value :
- (5) Notwithstanding anything in this Part of this Act contained the provisions of this section shall come into operation on the passing of this Act but so that any resolution thereafter passed by the Corporation under the said provisions and any agreement with or notice by any owner thereafter made or given under either of the said sections 3 and 4 of the said Act shall not take effect until after the commencement of this Part of this Act and any agreement with or notice given by any owner under either of the said sections in force at the passing of this Act shall be and the same are hereby determined on and from the commencement of this Part of this Act.

126. The provisions contained in this section shall have effect with respect to the consolidated rates to be made and levied by the overseers (that is to say) :—

Differential consolidated rate in certain cases.

- (1) The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only

A.D. 1923.

as a canal or towing path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the consolidated rate in respect of such hereditaments on the full rateable value thereof but (subject as next hereinafter provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of sixty per centum only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section less the discount from time to time allowed in pursuance of the section of this Act of which the marginal note is "Discount on consolidated rate":

Provided that during the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall have effect within the borough as if the following provision were substituted for section 1 thereof (that is to say):—

"The owner of tithe rentcharge attached to a benefice shall be liable to pay only seven-twelfths of the amount payable under subsection (1) of the section of the Torquay Corporation Act 1923 of which the marginal note is 'Differential consolidated rate in certain cases' in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining five-twelfths thereof shall on demand being made by the collector of the rate on the surveyor of taxes for the borough or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of the estate duty grant":

(2) Provided also that—

During the continuance of the Agricultural Rates Act 1896 the occupier of any agricultural land as defined in that Act shall be liable to pay in each year in respect of such land a rate calculated on the basis of only

thirty-five per centum of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section : A.D. 1923.

(3) Nothing in this section shall in any way affect—

(a) The operation of the Agricultural Rates Act 1896 save as in this section is expressly provided or the payment of the sum certified by the Minister of Health as the amount of the share of the annual grant payable under that Act out of the local taxation account to any spending authority or the operation of the Ecclesiastical Tithe Rent-charges (Rates) Acts 1920 and 1922; or

(b) The amount of the contribution for any purposes to be made by the parish out of the poor rate; or

(c) The calculation of the amount in the pound of the part of the consolidated rate levied for the purposes of the relief of the poor and other expenses of the guardians county contributions and expenses of the overseers respectively which is required to be stated in the demand note for the poor rate :

(4) (a) If any occupier referred to in subsection (1) of this section claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal and of the grounds thereof be given by the appellant to the Corporation;

(b) On appeals under this subsection the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

A.D. 1923.

Amend-
ment of
rates.

127. Section 221 of the Public Health Act 1875 shall apply to the borough in respect of the consolidated rate as if the rate therein mentioned were the consolidated rate.

Application
of section
133 of
Lands
Clauses
Consolida-
tion Act
1845.

128. For the purposes of section 133 (Until completion of works promoters shall make good any deficiency of land tax and poor's rate caused by lands being taken) of the Lands Clauses Consolidation Act 1845 the poor's rate shall be deemed to be one half of the amount in the pound of the consolidated rate.

As to re-
covery of
consolidated
rate.

129. No warrant of commitment in respect of non-payment of the consolidated rate shall be issued against any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate.

Service of
demand.

130. Section 267 (Service of notices) of the Public Health Act 1875 shall apply to any demand for the consolidated rate to be served by the overseers.

Overseers
may require
returns.

131.—(1) The overseers may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in the parish (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the form set forth in the Third Schedule to this Act or to the like effect and containing the particulars therein mentioned or referred to or such of them as the overseers may require :

Provided that (except for purposes connected with the preparation of and preliminary to a general revaluation for rating) the powers conferred by this section shall only be exercised—

- (a) Upon any change in the occupation or ownership of any hereditament; or
- (b) Upon any change in the nature or use of any hereditament whether by way of addition or adaptation of premises or otherwise such as may affect the value of the hereditament; or

(c) In the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section. A.D. 1923.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after the receipt of such notice as aforesaid shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers shall whenever required by the assessment committee of the Newton Abbot Union produce from time to time to such committee the returns or any of them obtained by the overseers under the provisions of this section.

132. The purpose to which the borough fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the borough fund and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance. Borough rate may include working balance.

PART XV.

FINANCE.

133. All expenses incurred by the Corporation in carrying into execution the provisions of this Act with respect to which no other provision is made may be defrayed out of the borough fund and borough rate. Expenses of execution of Act.

134.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof Power to borrow.

[Ch. cii.] *Torquay Corporation* [13 & 14 GEO. 5.]
Act, 1923.

A.D. 1923. and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column thereof (namely):—

Purpose.	Amount.	Period for repayment.
(a) For and in connection with the purchase of land for the street improvements by this Act authorised.	£ 3,000	Sixty years from the date or dates of borrowing.
(b) For the construction of such street improvements.	10,000	Thirty years from the date or dates of borrowing.
(c) For and in connection with the purchase of land for the purpose of the water undertaking and Abbey Park Recreation Ground.	2,000	Sixty years from the date or dates of borrowing.
(d) For the construction of the works upon the seashore by this Act authorised.	32,500	Forty years from the date or dates of borrowing.
(e) For payment of the costs charges and expenses of obtaining this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act other than the purposes of Part X. (Electricity) and including the provision of working capital for their gas undertaking and water undertaking and they may with the consent of the Electricity Commissioners as respects the said Part X. borrow such money as may be necessary for any of the purposes of that Part.

(b) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Minister of Health or the Electricity Commissioners as the case may be.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the borough fund and borough rate.

The provisions of this subsection shall not limit the powers conferred upon the Corporation by the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes." A.D. 1923.

135.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either :— Sinking fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a "non-accumulating sinking fund"; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest

A.D. 1923. — which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister of Health may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking

fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

A.D. 1923.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

136.—(1) The treasurer shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power or at any other time when the Minister of Health may require such a return to be made transmit to the Minister a return in such form as may be prescribed by the Minister and if required by the Minister verified by a statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Minister may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or

Returns as
to sinking
funds.

A.D. 1923. investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Minister shall require and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(2) If it appears to the Minister by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

Incorporation of financial provisions of Act of 1903 and Act of 1922.

137. The following provisions of the Act of 1903 and the *Torquay Corporation (Electricity) Act 1922* shall apply to the exercise of the powers of this Act as if the same were with the necessary modifications re-enacted in this Act (that is to say):—

The Act of 1903—

Section 58 Mode of raising money;

Section 59 Certain regulations of Public Health Acts as to borrowing not to apply;

Section 61 Corporation not to regard trusts;

Section 63 Mode of paying off of money borrowed;

Section 65 Saving for existing charges;

Section 68 Application of borrowed moneys;

Section 77 Inquiries by Local Government Board A.D. 1923.
(with the substitution of the word —
“five” for the word “three” in
subsection (2) of that section):

Torquay Corporation (Electricity) Act 1922—

Section 15 Protection of lender from inquiry.

138. The Corporation may from time to time Corporation
appoint and pay one or more persons being members of may ap-
the Institute of Chartered Accountants in England and point
Wales or of the Society of Incorporated Accountants additional
and Auditors to act as auditor or auditors of the accounts auditors.
of the Corporation in addition to the auditors appointed
under the Municipal Corporations Act 1882.

139. In calculating under subsection (2) of As to sec-
section 234 of the Public Health Act 1875 the tion 234 of
amount which the Corporation may borrow the Public
amount of any sinking fund or redemption fund Health Act
accumulated for the purpose of providing for the 1875.
repayment of loans contracted by the Corporation
under the Sanitary Acts and the Public Health Act
1875 shall be deducted from the total debt of the
Corporation under those Acts.

140.—(1) Where the Corporation have from time Power to
to time any statutory borrowing power they may for use one
the purpose of exercising such power grant mortgages form of
in pursuance of the provisions of this section. mortgage
for all

(2) Every mortgage granted under this section shall purposes.
be by deed truly stating the consideration and the time
or the mode of ascertaining the time and the place of
payment and shall be sealed with the corporate seal of
the Corporation and may be made in the form contained
in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall
rank equally without any priority or preference by
reason of any precedence in the date of any statutory
borrowing power or in the date of the mortgages or on
any other ground whatsoever and shall also rank equally
with all other securities granted by the Corporation at
any time after the date of the first grant of a mortgage
under this section.

(4) The repayment of all principal sums and the
payment of interest thereon secured by mortgages

A.D. 1923. granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods and by the means within and by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to public inspection during office hours at the said office without fee or reward and the treasurer or other the person having the custody of the same refusing to allow such inspection shall be liable to a fine not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the treasurer who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby. A.D. 1923.

(11) If the treasurer wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a fine not exceeding twenty pounds.

141.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order as from the thirty-first day of March one thousand nine hundred and twenty-four or as from any succeeding thirty-first day of March the Corporation may if they think fit establish a fund to be called the consolidated loans fund to which shall be paid as and when they are received— Consoli-
dated loans
fund.

(a) All moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys temporarily borrowed without security in connection with the exercise of duly authorised borrowing powers;

(b) All moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and

(c) The appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received and of all sums provided by the Corporation as aforesaid before the thirty-first day of March as from which the consolidated loans fund shall be established.

A.D. 1923.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

(a) In the exercise of any duly authorised borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; or

(b) In the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation:

And any moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Security for
principal
moneys.

142.—(1) All principal moneys shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(2) The interest from time to time payable on any such principal moneys shall rank equally with the interest or dividends on all other securities of the Corporation created or granted in pursuance of any statutory borrowing power and all such interest and dividends shall be the first charge on all the revenues aforesaid.

143. Section 72 of the Act of 1903 shall be read and have effect as if the following subsections were incorporated therein namely :—

A.D. 1923.

—
Extending
section 72
of Act of
1903.

(3) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister of Health may be consolidated and dealt with in the accounts of the Corporation as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister of Health separate consolidations may be made of all or any of the loans included under such general headings.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

144.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of moneys borrowed and charged upon all the revenues of the Corporation and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

Power to
use sinking
fund in-
stead of
borrowing.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

A.D. 1923.

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and reborrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Minister of Health with regard to the exercise of the powers contained in this section as that Minister shall require.

Evidence
of transfer
or trans-
mission of
securities.

145. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875) except upon the production to and temporary deposit with the treasurer of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Receipt in
case of
persons not
sui juris.

146. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Entertain-
ments
undertak-
ing severed
from har-
bour under-
taking.

147.—(1) The undertaking comprising the properties known as the Princess Pier including the concert hall thereon the Princess Gardens and the pavilion together with all property rights and powers held or exerciseable by the Corporation in connection therewith shall cease to form part of the harbour undertaking and shall be called the entertainments undertaking.

(2) Nothing in this section shall affect the application of the provisions of section 25 (Rates to be revised) of the Torquay Harbour Order 1888 to the Princess Pier. A.D. 1923.

(3) All moneys from time to time received by the Corporation in respect of the entertainments undertaking (including the interest on any reserve fund by this Act authorised in connection with that undertaking when that fund amounts to the prescribed maximum) shall be carried to and shall form part of the borough fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund.

148.—(1) All moneys from time to time received by the Corporation in respect of their harbour undertaking (including the interest on any reserve fund by this Act authorised in connection with that undertaking when that fund amounts to the prescribed maximum) shall be carried to and shall form part of the borough fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund. Harbour receipts and expenses.

(2) Section 10 of the Act of 1886 section 33 of the Torquay Harbour Order 1888 and section 7 of the Torquay Harbour Order 1910 are hereby repealed.

149. Section 24 of the Torquay Harbour Order 1888 shall be read and have effect as if the words “or such longer period as the Minister may allow” were inserted after the words “one month” and as if the words “thirty-first day of March” were substituted therein for the words “twenty-fifth day of March” and the annual account in abstract referred to in that section shall be deemed to include the annual account of the entertainments undertaking and of the harbour undertaking. Amending section 24 of Torquay Harbour Order 1888.

150. The Corporation shall keep their accounts so as to show under a separate heading or division in respect of each of the following undertakings (that is to say) the water undertaking the electricity undertaking the gas undertaking the entertainments undertaking and the harbour undertaking on the one side all receipts in respect of the particular undertaking and on the other side all payments and expenses in respect of the same undertaking. Form of accounts in relation to water electricity &c. undertakings.

151.—(1) The Corporation are hereby authorised to maintain if they think fit in respect of each or any of the undertakings referred to in the last preceding section Reserve funds.

A.D. 1923. of this Act by setting aside such an amount not exceeding in any year a sum equal to one-half per centum on the aggregate amount of capital expended on the undertaking as they may from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to one-tenth of such aggregate capital expenditure which fund shall be applicable from time to time to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of the undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the prescribed limit and so from time to time as often as such reduction happens.

(2) Any reserve fund which has been formed for the purposes of any of the said undertakings and which is in existence at the commencement of this Act shall be deemed to have been formed under this section.

(3) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

PART XVI.

MISCELLANEOUS.

Fire
alarms.

152. The Corporation may erect and fix street fire alarms in such positions in any street road or public place within the borough as they think fit Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Expenses of
public
ceremonies.

153. The Corporation may pay out of the borough fund as expenses incurred by them under the Municipal Corporations Act 1882 any reasonable expenses (not exceeding in any year the amount which would be produced by the levying of a borough rate of one half-penny in the pound) incurred by them in the reception

and entertainment of distinguished bodies and persons residing in or visiting the borough and on any occasion of public rejoicing or ceremony. A.D. 1923.
—

154. For the purpose of preserving protecting and strengthening the main road leading from Torquay to Paignton the Corporation may upon the foreshore between high and low water mark where the same abuts upon that road between Abbey Crescent and Corbyn Head from time to time construct extend alter and maintain such works of embankment and improvement as they may consider necessary for those purposes. Power to carry out works for protection of Torbay Road.

155. Any of the works authorised by the section of this Act of which the marginal note is "Power to carry out works for protection of Torbay Road" to be constructed on over or under tidal lands below high water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade. Works below high-water mark to be subject to approval of Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

156.—(1) The Council may make regulations with respect to the traffic using the Ilsham Marine Drive and may by such regulations prescribe the nature of the vehicles which may use the said drive either generally or during particular hours and the hours during which vehicles of any particular class or description shall not be entitled to use the same and the direction in which vehicles shall travel and the points at which they shall pass other vehicles and may by such regulations prevent the use of the said drive by any heavy vehicles or vehicles likely to cause damage to the surface thereof or to cause nuisance or annoyance to the other users thereof or to the residents in the premises adjacent thereto. As to traffic along Ilsham Marine Drive.

A.D. 1923.

(2) Any person who shall contravene any such regulation shall be liable to a penalty not exceeding forty shillings.

(3) Within seven days of making any such regulation the Corporation shall publish the same by advertisement in a newspaper circulating in the borough and by posting the same in a conspicuous position at each end of the drive with notice that any person deeming himself aggrieved thereby may make representation to the Minister of Transport within fourteen days of the publication of the advertisement and that such person shall at the same time send a copy of any such representation to the town clerk and the said Minister shall consider any representations which may within the said period of fourteen days be made to him and is hereby empowered after giving the Corporation an opportunity of being heard to disallow or vary any such regulation as he may think fit. In the event of any representation being made to the Minister against any such regulation such regulation shall not take effect if disallowed by the Minister and if varied by him shall take effect as so varied. In any event no such regulation shall take effect until twenty-one days after the date of such regulation.

(4) A copy of any regulations purporting to be signed by the town clerk and certified by him to be a true copy shall be evidence until the contrary is proved in all legal proceedings of the due making and existence of such regulation without further or other proof.

Prohibition
of touting
and hawk-
ing on
Princess
Parade in
Princess
Gardens
and on
seashore.

157.—(1) No person shall on the Princess Parade or in the Princess Gardens or on the seashore or the approaches to the seashore importune any person by touting for a hotel lodging house refreshment house shop pier boat garden theatre tramway hackney-carriage or any place of amusement or without the consent in writing of the Corporation hawk sell or offer for sale any article or commodity :

Provided that in the case of the sale of newspapers and periodicals the said consent shall be given to such reasonable number of persons and upon such terms and conditions as the Corporation may think fit.

(2) Any person offending against the provisions of this section shall be liable for every such offence to a penalty not exceeding forty shillings.

A.D. 1923. — Parts IV. V. and VII. of this Act as if those purposes had been mentioned in the said section 102.

General provisions as to bye-laws.

161. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act.

Evidence of appointments authority &c.

162. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authentication and service of notices &c.

163.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

158. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing (not being undertakers under any Act or under any Order made under the Tramways Act 1870 the Light Railways Acts 1896 and 1912 as amended by the Railways Act 1921 or the Electricity (Supply) Acts 1882 to 1922) the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

A.D. 1923.

Execution
of works
by Cor-
poration in
place of
owner.

159. If the occupier of any house or part of a house or premises shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Parts IV. and V. of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Penalty on
occupiers
refusing
execution
of Act.

160. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of the provisions of

Power of
entry.

164. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

A.D. 1923.

—
As to breach
of condi-
tions of
consent of
Corpora-
tion.

165. All consents given by the Corporation under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Consents of
Corporation
to be in
writing.

166. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportion-
ment of
expenses in
case of
joint
owners.

167. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Damages
and charges
to be settled
by court.

168. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery
of demands

169. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the

As to
appeals.

A.D. 1923. Corporation under the provisions of Parts IV. V. or VII. of this Act or by any conviction or order made by a court of summary jurisdiction or a petty sessional court under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction or a petty sessional court the Corporation may in like manner appeal.

Several
sums in
one
summons.

170. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Incorporation of
provisions
of Act of
1903.

171. The provisions contained in the sections of the Act of 1903 the numbers and marginal notes of which are set forth in this section shall so far as applicable and except where otherwise provided extend and apply to and in relation to the like matters as if they were with any necessary modifications re-enacted in this Act (namely)—

Section 75 Application of section 265 of Public Health Act 1875.

Section 79 Compensation how to be determined.

Section 82 Powers of Act cumulative

Section 83 Savings for indictments.

Section 84 Recovery of penalties.

Section 85 Informations by whom to be laid.

Section 87 Judges not disqualified.

Crown
rights.

172. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of
Act.

173. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation in the first instance out of the borough fund and borough rate but ultimately out of moneys to be borrowed under the authority of this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1923.

THE FIRST SCHEDULE.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY
ARE TO BE TAKEN.

Parish.	Description of Property.	Nos. on deposited Plans.
Tormoham - -	Gardens - - -	1 2 3 4 6 7 8 9 12.

THE SECOND SCHEDULE.

DUTIES OF OVERSEERS TRANSFERRED TO TOWN
CLERK.

Subject matter.	Act &c. imposing the duty.
Poor relief in sudden and urgent necessity.	Poor Law Amendment Act 1834 section 54.
Lunatics - - -	Lunacy Act 1890 sections 13 to 16 and Lunacy Act 1891 section 2.
Liquor licences - -	Licensing (Consolidation) Act 1910 sections 15 and 25.
Pawnbrokers' certificates -	Pawnbrokers Act 1872 section 42.
Notices under Education Act.	Education Act 1921 section 161.
Army Reserve - - -	Reserve Forces Act 1882 section 24.
Territorial Army - -	Territorial and Reserve Forces Act 1907 section 19.
Air Force Reserve - -	{ The two last-mentioned enactments as applied by or under any other Act.
Auxiliary Air Force - -	

A.D. 1923.

THE THIRD SCHEDULE.

RETURN OF RENT OR ANNUAL VALUE AND OF OTHER
PARTICULARS TO BE RENDERED UNDER THE TORQUAY
CORPORATION ACT 1923.

1. Name of the street or road &c. in which the property is situate - Number of the house - - - - - (If not numbered state the name by which known.) Whether occupied with or without stables or other premises as part of the same property- - - - - The quantity of land (if any) and how used - - - - -	
2. Full Christian name and surname of occupier - - - - -	
3. Name and address of owner or immediate lessor - - - - - (If not known state the name and address of the agent or persons to whom the rent is paid.)	
4. Whether the property is occupied (a) Wholly as a private residence - - - - - or (b) Partly as a dwelling-house and partly for trade or business purposes - - - - - or (c) Solely for trade or business purposes with no person residing on the premises other than a caretaker - - - - - (Number of rooms set apart for the use of the caretaker (if any) and on which floor.) (d) Nature of the business (if any) - - - - -	(a) (b) (c) (d)

A.D. 1923.

5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors - - - -	
6. Amount of rent - - - - or if ground rent only is paid state its amount - - - -	£ per £ per
7. Whether the property is held under lease or agreement for a period of years - - - - or by the year quarter month or week - - - -	
8. (a) Date of commencement of term of lease or agreement - - - (b) Term of years for which granted (c) Whether granted for any consideration in money in addition to the rent or upon any condition as to laying out money in building rebuilding or improvements - - - - (If none insert "None.")	(a) (b) (c) Amount paid for lease £
9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair - - - -	Annual Value £
10. (a) Amount of land tax (if any) - (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)	(a) £ Borne by the (b) £ Borne by the

A.D. 1923.

11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -

12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property - - - - -

(If each undertakes to bear part only of the cost of repairs state the particulars.)

DECLARATION.

I declare that the foregoing particulars are in every respect fully and truly stated to the best of my judgment and belief.

THE FOURTH SCHEDULE.

FORM OF MORTGAGE.

BOROUGH OF TORQUAY.

By virtue of the Torquay Corporation Act 1923 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Torquay (hereinafter referred to as "the Corporation"), in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by _____ (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Corporation (which expression includes the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation) as the principal sum doth or shall bear to the whole sum which is or shall be charged on the

A.D. 1923.

said revenues To hold unto the mortgagee (his) executors
administrators and assigns from the day of the date of these
presents until the principal sum shall be fully paid and satisfied
with interest for the same (subject as hereinafter provided) at
the rate of per centum per annum from the
day of one thousand nine hundred and
until payment of the principal sum such interest to be paid half-
yearly on the day of and the
day of in each year And it is hereby agreed
that the principal sum shall be repaid at the town hall in the
said borough [(subject as hereinafter provided) on the
day of one thousand nine hundred and
[by]:

Provided always and it is hereby agreed and declared that
the before-mentioned time for repayment may be extended to
such subsequent day or days and upon any such extension the
before-mentioned rate of interest may be altered to such other rate
or rates of interest as shall from time to time be agreed upon
between the Corporation and the mortgagee and mentioned in an
endorsement to be made hereon under the hand of the mayor or
the town clerk of the borough for the time being and that upon
any such endorsement being made whether relating to extension
of time only or to extension of time with alteration of rate of
interest the provisions thereof shall be incorporated herewith and
shall operate and take effect as though they had been originally
inserted herein.

In witness whereof the Corporation have caused their cor-
porate seal to be hereunto affixed this day of
one thousand nine hundred and .

Town Clerk.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting the within-
mentioned time for repayment of the within-mentioned principal
sum of is hereby extended to the
day of one thousand nine hundred and
[and the interest to be paid thereon on and from the
day of one thousand nine hundred and
is hereby declared to be at the rate of per centum
per annum].

Dated this day of one thousand
nine hundred and .

[Ch. cii.]

Torquay Corporation [13 & 14 Geo. 5.]
Act, 1923.

A.D. 1923.

FORM OF TRANSFER OF MORTGAGE.

I (the within-named) (of)
in consideration of the sum of pounds paid to me
by of (hereinafter referred to as
"the transferee") do hereby transfer to the transferee (his)
executors administrators and assigns (the within-written security,
the mortgage number of the revenues of the
mayor aldermen and burgesses of the borough of Torquay
bearing date the day of) and all
my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself my executors administrators
and assigns do hereby agree to take the said mortgage security
subject to the same conditions.

Dated this day of one thousand nine
hundred and .

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased through any Bookseller or directly from
H.M. STATIONERY OFFICE at the following addresses:
IMPERIAL HOUSE, KINGSWAY, LONDON, W.C. 2, and 28, ABINGDON STREET, LONDON, S.W. 1;
YORK STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
or 120, GEORGE STREET, EDINBURGH.